

CHAPTER 8.

An Act to amend the Government of India Act with a view to facilitating the provision of an Indian Navy, and to make consequential amendments in the Naval Discipline Act.

[29th June 1927.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. With a view to facilitating the provision of an Indian navy, the following amendments shall be made in the Government of India Act :

Amend-
ments of
Govern-
ment of
India Act.

- (1) At the end of section twenty-two the following new subsection shall be inserted :—

“(2) Where any naval forces and vessels raised and provided by the Governor General in Council are in accordance with the provisions of this Act placed at the disposal of the Admiralty, the revenues of India shall not, without the consent of both Houses of Parliament, be applicable to defraying the expenses of any such vessels or forces if and so long as they are not employed on Indian naval defence.”

- (2) After section forty-four, the following section shall be inserted :—

“44A. Any naval forces and vessels which may from time to time be raised and provided by the Governor General in Council shall be employed for the purposes of the government of India alone, except that if the Governor General declares that a state of emergency exists which justifies such action, the Governor General in Council may place at the disposal of the Admiralty all or any of such forces and vessels, and thereupon it shall be lawful for the Admiralty to accept such offer.”

- (3) For paragraph (e) of subsection (1) of section sixty-five, the following paragraph shall be substituted :—

“ (e) For all persons employed or serving in or belonging to any naval forces raised by the Governor General in Council, wherever they are serving, in so far as they are not subject to the Naval Discipline Act; and ”

- (4) For section sixty-six, the following section shall be substituted :—

“ 66. Subject to the provisions of this Act, provision may be made by the Indian Legislature for the application to the naval forces raised by the Governor General in Council of the Naval Discipline Act, and that Act, if so applied, shall have effect as if references therein to His Majesty’s Navy and His Majesty’s ships included the forces and ships raised and provided by the Governor General in Council, subject, however—

(a) in the application of the said Act to the forces and ships raised and provided by the Governor General in Council, and the trial by court-martial of officers and men belonging to those forces, to such modifications and adaptations (if any) as may be made by the Indian Legislature to adapt the Act to the circumstances of India, including such adaptations as may be so made for the purpose of authorising or requiring anything, which under the said Act is to be done by or to the Admiralty or the Secretary of the Admiralty, to be done by or to the Governor General in Council or by or to such person as may be vested with the authority by the Governor General in Council; and

(b) in the application of the said Act to the forces and ships of His Majesty’s Navy not raised and provided by the Governor General in Council, to such modifications and adaptations as may be

made by His Majesty in Council for the purpose of regulating the relations of the last-mentioned forces and ships to the forces and ships raised and provided by the Governor General in Council :

Provided that, where any forces and ships so raised and provided by the Governor General in Council have been placed at the disposal of the Admiralty, the said Act shall apply without any such modifications or adaptations as aforesaid."

2. In subsection (1) of section ninety B of the Naval Discipline Act, after the words "self-governing dominion" wherever they occur, there shall be inserted the words "or of India."

Amendment
of Naval
Discipline
Act.

3. Any law of the Indian Legislature made under the provisions of subsections (3) and (4) of section one of this Act may provide for the repeal of any law of the Indian Legislature in force at the commencement of this Act regulating the Royal Indian Marine Service, but until such repeal the Government of India Act shall, in relation to the Royal Indian Marine, have effect as if the substitutions effected by subsections (3) and (4) of section one of this Act had not been made, and as if the men and ships belonging to the Royal Indian Marine Service were naval forces and ships raised by the Governor General in Council within the meaning of the provisions contained in subsections (1) and (2) of section one of this Act.

Transitory
provision
for continu-
ance of
existing
disciplinary
measures.

4.—(1) This Act may be cited as the Government of India (Indian Navy) Act, 1927.

Short title,
construc-
tion and
printing.
9 & 10
Geo. 5.
c. 101.

(2) Subsection (2) of section forty-five of the Government of India Act, 1919 (which relates to the effect of amendments and the printing of the Government of India Act), shall have effect as if herein re-enacted and in terms made applicable to the amendments of the Government of India Act effected by this Act.

